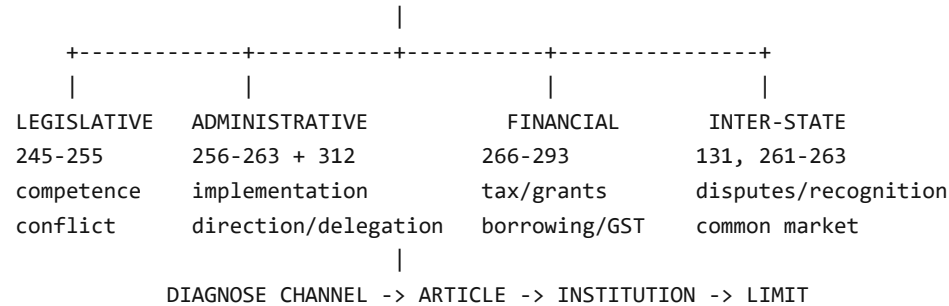


PANEL 1/12: FOUR-DIMENSIONAL CONSTITUTIONAL MAP

CENTRAL QUESTION: HOW CAN UNION CAPACITY COEXIST WITH STATE AUTONOMY?



PANEL 2/12: TERRITORY, LISTS, GST AND RESIDUE

ARTICLE 245: Parliament whole/part of India; extra-territorial operation protected

-> State extra-State effect only with real and pertinent territorial nexus

ARTICLE 246 + SEVENTH SCHEDULE

-> List I Parliament | List II States | List III both

-> standard examination counts 100 / 61 / 52

ARTICLE 246A: simultaneous GST power; Parliament exclusive for inter-State supplies

ARTICLE 247: additional courts for Union-field laws

ARTICLE 248 + ENTRY 97: genuine residue, including tax, belongs to Parliament

CONTROL: test Lists II and III before calling a matter residuary.

PANEL 3/12: PARLIAMENT IN THE STATE FIELD

NORMAL RULE: LIST II -> STATES

249: Rajya Sabha 2/3 present and voting; ≤ 1 year; renewable; 6-month tail

250: National Emergency; 6-month tail

252: 2+ State resolutions; later adoption; Parliament alone amends/repeals

253: treaty/agreement/convention/international decision

356-357: President's Rule; law continues until altered/repealed/amended

ARTICLE 251: 249/250 Union law prevails only while effective and to inconsistency extent

TRAP: five doors, five triggers; no undefined general Union override.

PANEL 4/12: DOCTRINES, REPUGNANCY AND STATE BILLS

TRUE CHARACTER -> FIELD -> HARMONIOUS OPERATION -> CONFLICT

pith and substance | territorial nexus | incidental encroachment

colourable legislation | delegated details within parent Act

ARTICLE 254: real Concurrent-field repugnancy

254(1): Union priority

254(2): President-assented State law may prevail in that State

-> Parliament can later override

ARTICLES 200/201: Governor/President stages | 304(b): previous sanction

ARTICLE 255: limited procedural cure, never a cure for lack of competence.

PANEL 5/12: ADMINISTRATIVE COOPERATION AND AGENCIES

256: State compliance with parliamentary/applicable law + Union directions
257: no impediment; communications and railway-protection directions + cost rules
258(1): Union function -> State with consent
258(2): parliamentary law may confer duties; cost adjustment
258A: State function -> Union with consent
259 omitted | 260 agreed functions relating to territory outside India
312: Rajya Sabha trigger -> AIS common to Union and States
DSPE section 6: ordinary CBI State consent; Articles 32/226 court exception.

PANEL 6/12: DUTY, BREAKDOWN AND JUDICIAL STATUS

ARTICLE 355 DUTY

- > protect State; ensure constitutional government

ARTICLE 365

- > non-compliance may support an inference; not automatic President's Rule

ARTICLE 356

- > exceptional remedy; parliamentary control; BOMMAI review/floor test

ARTICLE 357

- > exercise/delegation of State legislative power; continuation rule

2024 WEST BENGAL CBI SUIT

- > preliminary objection rejected; merits expressly left open

BOUNDARY: detailed Emergency procedure belongs to Topic 14.

PANEL 7/12: FINANCIAL CONSTITUTION

266-267: separate Consolidated and Contingency Funds

268: Union levy / State collection-appropriation

269: Union levy-collection / assignment | 269A: inter-State GST apportionment

270: divisible-pool distribution | 271: Union surcharge; GST excluded

273 historical temporary grant | 274 Presidential recommendation

275 constitutional grants | 276 profession tax $\leq$ Rs 2,500

279 net proceeds/CAG | 280-281 Finance Commission/laying | 282 public-purpose grants

285/289 qualified immunities | 292/293 borrowing.

PANEL 8/12: FISCAL EVOLUTION, IMBALANCE AND BORROWING

VERTICAL: Union-State revenue/responsibility mismatch

HORIZONTAL: unequal capacity and need among States

PLAN ERA -> Article 282 + Planning Commission/NDC

POST-2015 -> NITI + Finance Commission devolution + GST

16FC: report 17 Nov 2025; award 2026-31; accepted vertical share 41% divisible pool

HORIZONTAL: income distance 42.5 | population 17.5 | four criteria at 10 each

PRESSURES: cesses/surcharges | CSS conditions | transfer timing | Article 293

KERALA 2024: interim relief denied; 5-judge reference; merits not settled.

PANEL 9/12: GST AS NEGOTIATED FISCAL FEDERALISM

101ST AMENDMENT

246A: simultaneous legislative power

269A: inter-State GST levy/collection and apportionment

279A: Council recommendation

COUNCIL: quorum 1/2 | decision 3/4 weighted

Union 1/3 | States together 2/3

MOHIT MINERALS, 2022:

recommendations persuasive/recommendatory for primary legislation

no automatic Article 254-style supremacy

CONTROL: non-binding != irrelevant; enacted law and statutory rules still bind.

PANEL 10/12: WATER DISPUTES, ARTICLE 131 AND COUNCILS

ARTICLE 131: qualifying government dispute + legal right + constitutional exclusions

ARTICLE 262: Parliament may provide adjudication and exclude courts

RIVER BOARDS ACT 1956: advisory regulation/development

WATER DISPUTES ACT 1956: dispute-specific tribunal + section 11 bar

2019 SINGLE-TRIBUNAL BILL: did not become law

ARTICLE 263 + 1990 ORDER: ISC inquiry/discussion/advice

SRA 1956: five Zonal Councils | NEC ACT 1971: separate body

ARTICLE 261: recognition/proof/effect + civil judgment execution.

PANEL 11/12: COMMON MARKET, COMMISSIONS AND CLOSE DISTINCTIONS

PART XIII: 301 freedom -> 302 public interest -> 303 preference bar
-> 304(a) tax non-discrimination
-> 304(b) reasonable restriction + previous Presidential sanction
JINDAL STAINLESS: tax-free market rejected; discrimination is central
FIRST ARC: ISC/delegation/resources
RAJAMANNAR: far-reaching State autonomy
SARKARIA: strong Union without over-centralisation; 356 last resort; ISC
PUNCHHI: updated Governor/council/fiscal reforms
FIREWALL: recommendation != binding constitutional law.

PANEL 12/12: ANSWER SPINE AND BALANCED REFORM

DEFINE CHANNEL -> CITE ARTICLE -> EXPLAIN MECHANISM -> NAME EVIDENCE
-> STATE PROCEDURAL / LEGAL LIMIT -> BALANCE CAPACITY AND AUTONOMY

CHALLENGE	REFORM
assent/directions	prompt reasons + text-bounded power
cesses/transfers/CSS	transparent base + predictability + flexibility
GST disagreement	data + deliberation + dispute mechanism
borrowing conflict	objective risk rules + reasons + adjudication
river disputes	shared data + timely award + implementation
under-used ISC	regular agenda + published follow-up

VERDICT: consultation before compulsion; rules before discretion; implementation after award
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